

Tentative Rulings for August 6, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500173	ZARAGOZA VS SMART, M.D.	MOTION FOR LEAVE TO AMEND COMPLAINT

Tentative Ruling:

The motion to file a first amended complaint is granted. Plaintiff is to file the first amended complaint within 10 days of this order.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500641	MARTINEZ VS BACOT- CARTER, N.P.	MOTION FOR LEAVE TO AMEND COMPLAINT ON ...1ST AMENDED COMPLAINT

Tentative Ruling:

The motion to file an amended complaint is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2603983	TONOYAN VS AMERICAN RENEWABLE ENERGY, INC.	PETITION RE: ARBITRATION AWARD

Tentative Ruling:

The Court is unable to act on the petition to confirm arbitration award as it has not been served on the opposing party.

4.

CASE #	CASE NAME	HEARING NAME
RIC2003011	TRAN VS SURUBBI	MOTION TO DISMISS FOR FAILURE TO PROSECUTE

Tentative Ruling:

The Court was unable to locate a proof of service indicating that this motion has been served. However, it does appear that no action has been taken to prosecute this action since 2023. Therefore, the Court issues an OSC to Plaintiff as to why this matter should not be dismissed for failure to prosecute this action with sanctions up to \$1500 or dismissal of the entire action set for September 23, 2026 at 8:30 am in Dept. 3. The Court will give notice of the OSC.